

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-008
Amendments to Title 16 of the Chickasaw Nation Code
(Covid-19 Rules for Sessions, Meetings, and Voting)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules for Legislative Sessions, Meetings, and Voting, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend and enact further rules for Legislative Sessions, Meetings, and Voting during the Public Health Emergency issued by the Governor during the Coronavirus Pandemic, more commonly known as Covid-19.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 16, Sections 16-201.1 and 16-201.7(B)(13) of the Chickasaw Nation Code, all other sections to remain the same (additions shown in red, deletions stricken through). These amendments to the Chickasaw Nation Code shall become effective December 18, 2020, and shall be automatically stricken from the Code, reversing these amendments, upon the Governor's lifting of the Covid-19 Public Health Emergency or earlier by vote of the Legislature. Amendments provided as followed:

"SECTION 16-201.1 **SESSIONS AND MEETINGS.**

A. Regular Sessions of the Legislature shall be held on the third Friday of each month at 9:00 a.m. at the Legislative Building, Chickasaw Nation Headquarters, unless otherwise provided by the Legislature.

D. Regular Sessions of the Legislature, during the Public Health Emergency issued by the Governor during the Covid-19 Pandemic, shall be held at 9:00 a.m. at the Legislative Building, Chickasaw Nation Headquarters or from any place through virtual conference software. Meetings during the Covid-19 Public Health Emergency must include video and sound recording of all present Legislators. This provision shall automatically terminate and be stricken from the Code upon the Governor's lifting of the Covid-19 Public Health Emergency or by a vote of the Legislature.

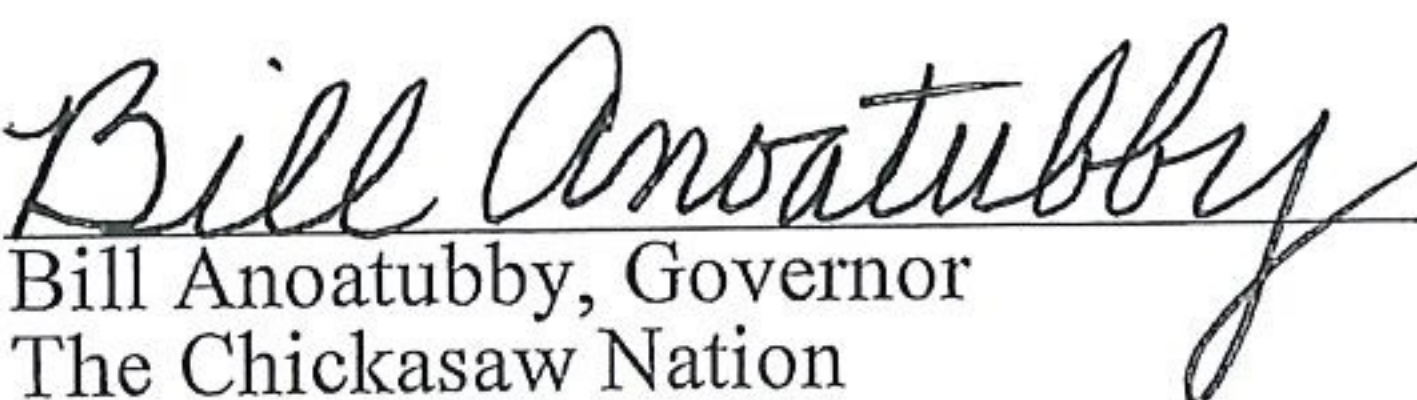
SECTION 16-201.7SPECIAL RULES OF ORDER OF THE LEGISLATURE.

13. Only Legislators present at a meeting or Session may vote on a question presented. No provision shall allow voting on a question by phone, mail or proxy, **except during the Covid-19 Pandemic, Public Health Emergency, issued by the Governor, which allows Legislators to be present virtually for quorum, voting, speaking, and debate. Virtual attendance must be video and audio recorded of each Legislator for quorum, voting, speaking, and debate. This exception shall automatically terminate and be stricken from the Chickasaw Nation Code upon the Governor's lifting of the Covid-19 Public Health Emergency or by vote of the Legislature."**

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on December 20, 2020 by a vote of 12 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: DEC 18 2020

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 38-008

Explanation

Explanation:

This Permanent Resolution seeks to amend the rules for Legislative Sessions and Meetings, as allowed under the Chickasaw Constitution, to protect the health, safety, and welfare of Legislative staff, employees, contractors, and members of the Legislature during the Covid-19 Pandemic and Public Health Emergency issued by the Governor.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature